

Amendment No. 1 to HB1239

Terry
Signature of Sponsor

AMEND Senate Bill No. 421*

House Bill No. 1239

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 53-11-311, is amended by adding the following as a new subsection:

(j)

(1) Notwithstanding this title to the contrary, and except as otherwise provided in this section, a physician licensed under title 63, chapter 6 or 9, is the only healthcare provider authorized to prescribe a buprenorphine product for a federal food and drug administration-approved use in recovery or medication-assisted treatment.

(2) Healthcare providers not licensed pursuant to title 63, chapter 6 or 9, and who are otherwise permitted to prescribe Schedule II or III drugs under this title are prohibited from prescribing a buprenorphine product for the treatment of opioid use disorder unless the provider:

(A) Has an active registration with the federal drug enforcement agency;

(B) Is employed by or contracts with a state correctional facility, as defined in § 41-21-206, or a county or municipal jail to provide healthcare services;

(C) Has adopted clinical protocols for the facilitation or continuance of medication-assisted treatment for persons who are

incarcerated in or to be released from such state correctional facility or county or municipal jail;

(D) Writes prescriptions for buprenorphine to no more than fifty (50) patients at any given time;

(E) Collaborates with a physician who reviews one hundred percent (100%) of the charts of the patients being prescribed a buprenorphine product;

(F) Is supervised by or collaborates with a physician who is limited to the supervision of, or collaboration for, a maximum of five (5) licensed nurse practitioners or physician assistants;

(G) Does not write any prescription for a buprenorphine product that exceeds a sixteen-milligram daily equivalent;

(H) Has had no limitations or conditions imposed on the provider's license by the provider's licensing authority within the previous three (3) years; and

(I) Prescribes buprenorphine products only to patients who are treated through the correctional facility that employs the provider.

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it.